

AIA Document A133 – 2019

Standard Form of Agreement Between Owner and Construction Manager as Constructor where the basis of payment is the Cost of the Work Plus a Fee with a Guaranteed Maximum Price

AGREEMENT made as of the **Twenty-Fourth (24th)** day of **October** in the year **Two Thousand Twenty-Five (2025)**.

BETWEEN the Owner:

(Name, legal status, address, and other information)

City of Fall River, Massachusetts, a Massachusetts municipal corporation
Department of Community Utilities
One Government Center
Fall River, MA 02722
Telephone: (508) 324-2300

and the Construction Manager:

(Name, legal status, address, and other information)

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Fictional Civil Constructors, LLC, a Massachusetts limited liability company
215 Industrial Park Road
Taunton, MA 02780
Telephone: (508) 880-4117
License No.: MA-CSL-CS-104882

for the following Project:

(Name, location, and detailed description)

Cowan Street Sewer Improvements and Marine Drive Utility Relocation Project
Cowan Street / Marine Drive corridor, Fall River, MA 02721
Approximately 1.6 miles of utility infrastructure including a 66" sanitary sewer force main, 30" overflow gravity sewer, 12" water main, 12" gravity sewer, 60" storm drainage, box culvert, building demolition across nine (9) tracts, and associated traffic control and site restoration along River North Boulevard.



The Architect:

(Name, legal status, address, and other information)

Eastbridge Engineering Group, Inc., a Massachusetts professional corporation
480 Pleasant Street, Suite 320
New Bedford, MA 02740
Telephone: (508) 999-4760

The Landlord: *Not Applicable.*

The Owner and Construction Manager agree as follows.

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ARTICLE 1 - INITIAL INFORMATION

§ 1.1 This Agreement is based on the Initial Information set forth in this Section 1.1.

§ 1.1.1 The Owner's program for the Project, as described in Section 4.1.1:

Replacement and relocation of aging combined sewer infrastructure within the Cowan Street / Marine Drive corridor to comply with EPA Consent Decree Section IV.B and to support redevelopment of the South Watuppa waterfront. Program documentation is established by the Owner's Long-Term Control Plan Update dated June 2024 and the Cowan Corridor Master Plan dated February 2025.

§ 1.1.2 The Project's physical characteristics:

Linear urban utility corridor approximately 8,400 LF in length spanning Tracts 2, 3, 5, 7A, 7B, 8, 12, 13 and 14. Site soils are predominantly soft estuarine silts over glacial till, requiring pre-load fill from STA 6+00 to STA 16+00 per geotechnical report by Helical Soils Group dated April 8, 2025. Existing rights-of-way are encumbered by overhead Cowan Power Poles scheduled for full disconnection by 12/01/2025. Project is partially funded through ARPA and is subject to the ARPA Contract Addendum.

§ 1.1.3 The Owner's budget for the Guaranteed Maximum Price, as defined in Article 6:

Total Contract Value: \$82,842,229

Direct Cost of the Work: \$62,027,055

Contractor's Fee (Overhead & Profit): \$9,189,308

Indirect Costs (bonds, insurance, permits): \$364,259

Allowances (permit/AHJ comments, unforeseen conditions, unsuitable soils): \$5,135,400

Contractor Contingency on Direct Work: \$3,063,103

Owner Contingency on Direct Work: \$3,063,103

See Exhibit A - Guaranteed Maximum Price Amendment, for the complete line-item breakdown.

§ 1.1.4 The Owner's anticipated design and construction milestone dates:

.1 Design phase milestone dates, if any:

100% Design Documents issued: October 6, 2025



.2 Construction commencement date:

Construction Notice to Proceed: **November 24, 2025**

.3 Substantial Completion date or dates:

Substantial Completion: **June 30, 2027**

.4 Other milestone dates:

Cowan Power Poles fully disconnected: 12/01/2025

Mobilization complete / Pre-load fill monitoring start: 03/02/2026

Box Culvert installation start: 06/01/2026

Final Completion: **July 30, 2027**

§ 1.1.5 The Owner's requirements for accelerated or fast-track scheduling, or phased construction:

The Project shall be performed on a phased basis with Crew 1 (Marine Drive Utility Installation) commencing 02/09/2026 and continuing in parallel with Box Culvert and 66" Force Main installation crews. The Owner requires that all Marine Drive utility work be substantially complete prior to October 1, 2026 to accommodate the City's annual paving program.

§ 1.1.6 The Owner's anticipated Sustainable Objective for the Project:

Targeting Envision Silver verification through the Institute for Sustainable Infrastructure (ISI). Recycled aggregate base shall comprise no less than 30% of granular fill where geotechnically suitable.

§ 1.1.6.1 If the Owner identifies a Sustainable Objective, the Owner and Construction Manager shall complete and incorporate AIA Document E234™–2019, Sustainable Projects Exhibit, Construction Manager as Constructor Edition, into this Agreement to define the terms, conditions and services related to the Owner's Sustainable Objective. If E234– 2019 is incorporated into this agreement, the Owner and Construction Manager shall incorporate the completed E234 – 2019 into the agreements with

§ 1.1.7 Other Project information:

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Project includes coordination with the Massachusetts Department of Transportation (MassDOT) for the River Road 72" casing installation crossing State Route 138, and with Eversource Energy for permanent removal of the Cowan Street overhead distribution circuit.

§ 1.1.8 The Owner identifies the following representative in accordance with Section 4.2:

Margaret R. DiPietro, P.E.

Director of Capital Projects, City of Fall River
One Government Center, Room 408
Fall River, MA 02722
Telephone: (508) 324-2331
Email: mdipietro@localhost.gov

§ 1.1.9 Persons or entities, in addition to the Owner's representative, required to review the Construction Manager's submittals to the Owner:

Steven J. Ahearn, P.E. - Commissioner of Public Works, City of Fall River
Eastbridge Engineering Group, Inc. - Engineer of Record (see § 1.1.11)

§ 1.1.10 The Owner shall retain the following consultants and contractors:

.1 Geotechnical Engineer:

Helical Soils Group, Inc., a Massachusetts corporation
12 Cordage Park Circle, Suite 320
Plymouth, MA 02360
Telephone: (508) 746-9920

.2 Civil Engineer:

Eastbridge Engineering Group, Inc. *(also serving as Engineer of Record - see Architect designation above)*

.3 Other:

Land Surveyor:

Bayline Surveying Associates, LLC
88 Pearl Street

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Mattapoisett, MA 02739
Telephone: (508) 758-2200

Environmental Engineer:
Tidewater Environmental Consultants, Inc.
320 Norwich Avenue
Taunton, MA 02780
Telephone: (508) 824-5510

§ 1.1.11 The Architect's representative:

Daniel S. Whitfield, P.E.
Principal-in-Charge, Eastbridge Engineering Group, Inc.
480 Pleasant Street, Suite 320
New Bedford, MA 02740
Telephone: (508) 999-4763
Email: dwhitfield@localhost.com

§ 1.1.12 The Construction Manager identifies the following representative in accordance with Article 3:

Thomas R. Calderon
Senior Vice President of Operations, Fictional Civil Constructors, LLC
215 Industrial Park Road
Taunton, MA 02780
Telephone: (508) 880-4119
Email: tcalderson@localhost.com

§ 1.1.13 The Owner's requirements for the Construction Manager's staffing plan for Preconstruction Services:

As required in **Exhibit A**.

§ 1.1.14 Owner's requirements for subcontractor procurement:

All subcontractors must be experienced and properly licensed in Massachusetts; CM shall provide list of subcontractors, union/non-union status, and prior Owner-project experience.



§ 1.1.15 Other Initial Information on which this Agreement is based:

The 100% Design Documents prepared by Eastbridge Engineering Group, Inc. dated October 6, 2025; Geotechnical Investigation Report by Helical Soils Group dated April 8, 2025; and the Owner's ARPA Subrecipient Agreement No. FR-ARPA-2024-0117.

ARTICLE 2 - GENERAL PROVISIONS

§ 2.1 The Contract Documents The Contract Documents consist of this Agreement, Conditions of the Contract (General, Supplementary and other Conditions), ARPA Contract Addendum, Drawings, Specifications, Addenda issued prior to execution of this Agreement, other documents listed in this Agreement, and Modifications issued after execution of this Agreement, all of which form the Contract and are as fully a part of the Contract as if attached to this Agreement or repeated herein. Upon the Owner's acceptance of the Construction Manager's Guaranteed Maximum Price proposal, the Contract Documents will also include the documents described in Section 3.2.3 and identified in the Guaranteed Maximum Price Amendment and revisions prepared by the Architect and furnished by the Owner as described in Section 3.2.8. The Contract represents the entire and integrated agreement between the parties hereto and supersedes prior negotiations, representations or agreements, either written or oral. Should any of the Contract Documents conflict with each other, the conflict will be resolved using the following order of precedence:

- (1) Applicable laws and regulations, including those set forth in the ARPA Addendum;
- (2) Modifications, in reverse chronological order;
- (3) this Agreement;
- (4) any Supplementary Conditions;
- (5) A201 General Conditions;
- (6) Exhibits to this Agreement;
- (7) Addenda, if any;
- (8) Drawings;
- (9) Specifications; and
- (10) any other Contract Documents.

§ 2.2 Relationship of the Parties The Construction Manager accepts the relationship of trust and confidence established by this Agreement and covenants with the Owner to cooperate with the Architect and exercise the Construction Manager's skill and judgment in furthering the interests of the Owner to furnish efficient construction administration, management services, and supervision; to furnish at all times an adequate supply of workers and materials; and to perform the Work in an expeditious and economical manner consistent with the



Owner's interests. The Owner agrees to furnish or approve, in a timely manner, information required by the Construction Manager and to make payments to the Construction Manager in accordance with the requirements of the Contract Documents.

§ 2.3 General Conditions

§ 2.3.1 For the Preconstruction Phase, AIA Document A201™–2017, as modified, General Conditions of the Contract for Construction, shall apply as follows: Section 1.5, Ownership and Use of Documents; Section 1.7, Digital Data Use and Transmission; Section 1.8, Building Information Model Use and Reliance; Section 2.2.4, Confidential Information; Section 3.12.10, Professional Services; Section 10.3, Hazardous Materials; Section 13.1, Governing Law. The term "Contractor" as used in A201–2017, as modified, shall mean the Construction Manager.

§ 2.3.2 For the Construction Phase, the general conditions of the contract shall be as set forth in A201–2017, as modified, which document is incorporated herein by reference. The term "Contractor" as used in A201–2017, as modified, shall mean the Construction Manager. Initially capitalized terms used and not otherwise defined herein shall have the meanings given to such terms in the General Conditions.

§ 2.3.3 Standard of Care. In performing its duties hereunder, Construction Manager shall exercise the degree of care and skill equal in all respects to the standard of care used and reasonably expected of first class construction managers performing work and services for projects of kind and scope comparable to the Project in the Greater Boston, Massachusetts area (the "Standard of Care"). **§ 2.4 Contract Time** **§ 2.4.1** The Construction Manager shall diligently prosecute the Work and achieve Substantial Completion of the entire Work not later than the Deadline for Substantial Completion and shall achieve Final Completion of the Work not later than the Deadline for Final Completion, subject to authorized adjustments of the Contract Time as provided in the Contract Documents. The Deadline for Substantial Completion is as noted in Section 1.1.4. The Deadline for Final Completion is as noted in Section 1.1.4.

ARTICLE 3 - CONSTRUCTION MANAGER'S RESPONSIBILITIES

§ 3.1 Preconstruction Phase **§ 3.1.1 Extent of Responsibility** The Construction Manager shall exercise the Standard of Care in performing its Preconstruction Services. The Owner and Architect shall be entitled to rely on, and shall not be responsible for, the accuracy, completeness, and timeliness of services and information furnished by the Construction Manager. Except to the extent consistent with the Standard of Care, the Construction Manager, however, does not warrant or guarantee estimates and schedules except as may be included as part of the Guaranteed Maximum Price. The Construction Manager is not required to ascertain that the Drawings and Specifications are in accordance with applicable laws, statutes, ordinances, codes, rules and regulations, or lawful orders of public authorities, but the Construction Manager shall promptly report to the Architect and



Owner any nonconformity discovered by or made known to the Construction Manager as a request for information in such form as the Architect may require.

§ 3.1.2 The Construction Manager shall provide a preliminary evaluation of the Owner's program, schedule and construction budget requirements, each in terms of the other.

§ 3.1.3 Consultation § 3.1.3.1 The Construction Manager shall schedule and conduct meetings with the Architect and Owner to discuss such matters as procedures, progress, coordination, and scheduling of the Work.

§ 3.1.3.2 The Construction Manager shall advise the Owner and Architect on proposed site use and improvements, selection of materials, building systems, and equipment. The Construction Manager shall also provide recommendations to the Owner and Architect, consistent with the Project requirements, on constructability; availability of materials and labor; time requirements for procurement, installation and construction; prefabrication; and factors related to construction cost including, but not limited to, costs of alternative designs or materials, preliminary budgets, life-cycle data, and possible cost reductions. The Construction Manager shall consult with the Architect regarding professional services to be provided by the Construction Manager during the Construction Phase.

§ 3.1.3.2.1 The Construction Manager shall review progress drawings and specifications developed by the Architect to provide value analysis of construction materials and systems to the Owner and Architect in an attempt to maximize value within Owner's budget. The Construction Manager shall collaborate with the Owner and Architect to identify bidding packages to be distributed by the Construction Manager as required herein.

§ 3.1.3.3 The Construction Manager shall assist the Owner and Architect in establishing building information modeling and digital data protocols for the Project, using AIA Document E203™–2013, Building Information Modeling and Digital Data Exhibit, to establish the protocols for the development, use, transmission, and exchange of digital data.

§ 3.1.3.4 The Construction Manager shall assist the Owner and Architect in gaining the necessary approvals and permits required by governmental authorities. The Construction Manager shall attend public hearings, advise the Owner and Architect as appropriate in the securing of approvals and permits and will actively participate in the seeking of necessary approvals and permits for the Project.

§ 3.1.4 Project Schedule When Project requirements in Section 4.1.1 have been sufficiently identified, the Construction Manager shall prepare and periodically update a Project schedule for the Architect's review and the Owner's acceptance. The Construction Manager shall obtain the Architect's approval for the portion of the Project schedule relating to the performance of the Architect's services. The Project



schedule shall coordinate and integrate the Construction Manager's services, the Architect's services, other Owner consultants' services, and the Owner's responsibilities; and identify items that affect the Project's timely completion. The updated Project schedule shall include the following: milestone dates for receipt and approval of pertinent information; submission of the Guaranteed Maximum Price proposal; components of the Work; preparation and processing of shop drawings and samples; times of commencement and substantial completion required of each Subcontractor; ordering and delivery of products, materials and equipment; including those that must be ordered in advance of construction; and the occupancy requirements of the Owner, showing portions of the Project having occupancy priority. If Project schedule updates indicate that previously approved schedules may not be met, the Construction Manager shall make appropriate recommendations to the Owner and Architect.

§ 3.1.5 Phased Construction The Construction Manager, in consultation with the Architect and Owner, shall provide recommendations with regard to accelerated or fast-track scheduling, procurement, and sequencing for phased construction. The Construction Manager shall take into consideration cost reductions, cost information, constructability, provisions for temporary facilities, and procurement and construction scheduling issues.

§ 3.1.6 Cost Estimates § 3.1.6.1 Based on the preliminary design and other design criteria prepared by the Architect, the Construction Manager shall prepare, for the Architect's review and the Owner's approval, preliminary estimates of the Cost of the Work or the cost of program requirements using area, volume, or similar conceptual estimating techniques. If the Architect or Construction Manager suggests alternative materials and systems, the Construction Manager shall provide cost evaluations of those alternative materials and systems.

§ 3.1.6.2 As the Architect progresses with the preparation of the Schematic Design, Design Development and Construction Documents, the Construction Manager shall prepare and update, at appropriate intervals agreed to by the Owner, Construction Manager and Architect, an estimate of the Cost of the Work with increasing detail and refinement. The Construction Manager shall include in the estimate those costs to allow for the further development of the design, price escalation, and market conditions, until such time as the Owner and Construction Manager agree on a Guaranteed Maximum Price for the Work. The estimate shall be provided for the Architect's review and the Owner's approval.

§ 3.1.6.3 If the Architect or Owner is providing cost estimating services and a discrepancy exists between the Construction Manager's cost estimates and the Owner or Architect's cost estimates, the Construction Manager and the Architect shall work together to reconcile the cost estimates.



§ 3.1.6.4 If any estimate submitted to the Owner exceeds previously approved estimates or the Owner's budget, the Construction Manager shall make appropriate recommendations to the Owner and Architect. Documentation for any of the design phases determined to exceed the allocated budget shall be modified by the Architect as mutually agreed by the Architect, Construction Manager and Owner to establish a revised design and/or construction scope which is within budget constraints. The Construction Manager and Owner will revise their respective construction cost estimates to incorporate the documented revisions and reconcile the estimates until a mutually agreed design and scope has been reached within the allocated budget.

§ 3.1.7 As the Architect progresses with the preparation of the Schematic Design, Design Development and Construction Documents, the Construction Manager shall consult with the Owner and Architect and make recommendations regarding constructability and schedules, for the Architect's review and the Owner's approval.

§ 3.1.8 The Construction Manager shall provide recommendations and information to the Owner and Architect regarding equipment, materials, services, and temporary Project facilities.

§ 3.1.9 The Construction Manager shall provide a staffing plan for Preconstruction Phase services for the Owner's review and approval.

§ 3.1.10 If the Owner identified a Sustainable Objective in Article 1, the Construction Manager shall fulfill its Preconstruction Phase responsibilities as required in AIA Document E234™–2019, Sustainable Projects Exhibit, Construction Manager as Constructor Edition, attached to this Agreement.

§ 3.1.11 Subcontractors and Suppliers § 3.1.11.1 If the Owner has provided requirements for subcontractor procurement in section 1.1.14, the Construction Manager shall provide a subcontracting plan, addressing the Owner's requirements, for the Owner's review and approval.

§ 3.1.11.2 The Construction Manager shall develop bidders' interest in the Project.

§ 3.1.11.3 The processes described in Article 9 shall apply if bid packages will be issued during the Preconstruction Phase.

§ 3.1.11.4 Pre-Qualifications of Bidding Subcontractors and Suppliers The Construction Manager shall prepare a list of firms to be recommended for inclusion of bidding on the trade contracts. The Owner and the Architect may direct deletion of any firm they do not wish to have included on the list. The Owner and the Architect may request additional firms to be added to the list subject to agreement by the Construction Manager. Upon receipt of bids, the Construction Manager, with input from the Owner and the Architect, shall confirm the qualifications of low bidders and validate that they have complete scope. The Owner will make the final decision



based on recommendations by the Construction Manager and the Architect for the award of trade contracts and material purchases.

§ 3.1.12 Procurement The Construction Manager shall prepare, for the Architect's review and the Owner's acceptance, a procurement schedule for items that must be ordered in advance of construction. The Construction Manager shall expedite and coordinate the ordering and delivery of materials that must be ordered in advance of construction. If the Owner agrees to procure any items prior to the establishment of the Guaranteed Maximum Price, the Owner shall procure the items on terms and conditions acceptable to the Construction Manager. Upon the establishment of the Guaranteed Maximum Price, to the extent mutually agreed by the Construction Manager and the Owner, the Owner shall assign all contracts for these items to the Construction Manager and the Construction Manager shall thereafter accept responsibility for them.

§ 3.1.12.1 Bidding Process for Construction Contracts The Construction Manager with the assistance of the Architect, shall issue bidding documents to the prequalified subcontract bidders and conduct pre-bid conferences with the bidders. Bids will be submitted to the Construction Manager and Owner. The Construction Manager shall solicit approximately five bids for each trade or specialty contractor package. A minimum of three bids must be received for each package unless specifically approved otherwise by the Owner. The Construction Manager shall meet with the bidders to review their approach to the work, scope of bid, ability to perform the work and solicit value engineering suggestions. As a result of these meetings, the Construction Manager shall recommend to the Owner that the subcontractor's bid be accepted or rejected for the respective trade packages based on compliance with the bid documents. Prior to recommending the acceptance of any subcontractors bid, the Construction Manager must demonstrate to the Owner and Architect that the scope and price submitted by the bidder is within the parameters of the Control Budget.

§ 3.1.12.2 Rejection of Bids If the bids of the construction subcontractors are rejected, the Construction Manager shall provide services as listed in Section 3.1.11.4, 3.1.12 and 3.1.12.1 to rebid the respective packages.

§ 3.1.13 Compliance with Laws The Construction Manager shall comply with applicable laws, statutes, ordinances, codes, rules and regulations, and lawful orders of public authorities applicable to its performance under this Contract, and with equal employment opportunity programs, and other programs as may be required by governmental and quasi-governmental authorities.

§ 3.1.14 Other Preconstruction Services: CM shall develop and maintain a project-specific cash-flow projection updated monthly through Substantial Completion, prepare and maintain the Pre-Qualification list of subcontractors for



trades exceeding \$250,000, and coordinate the Long Lead Procurement schedule including the 66" Plug Valve (213-day lead) and 66" Pipe Mill Steel Order release.

§ 3.2 Guaranteed Maximum Price Proposal § 3.2.1 At a time to be mutually agreed upon by the Owner and the Construction Manager, the Construction Manager shall prepare a Guaranteed Maximum Price proposal for the Owner's and Architect's review, and the Owner's acceptance. The Guaranteed Maximum Price in the proposal shall be the sum of the Construction Manager's estimate of the Cost of the Work, the Construction Manager's contingency described in Section 3.2.4, and the Construction Manager's Fee described in Section 6.1.2. In the A201, references to the "Contract Sum" shall refer to the Guaranteed Maximum Price upon the Owner's acceptance of the Guaranteed Maximum Price proposal.

§ 3.2.2 To the extent that the Contract Documents are anticipated to require further development, the Guaranteed Maximum Price includes the costs attributable to such further development consistent with the Contract Documents and reasonably inferable therefrom. Such further development does not include changes in scope, systems, kinds and quality of materials, finishes, or equipment, all of which, if required, shall be incorporated by Change Order.

§ 3.2.3 The Construction Manager shall include with the Guaranteed Maximum Price proposal a written statement of its basis, which shall include the following:

- .1 A list of the Drawings and Specifications, including all Addenda thereto, and the Conditions of the Contract;
- .2 A list of the clarifications and assumptions made by the Construction Manager in the preparation of the Guaranteed Maximum Price proposal, including assumptions under Section 3.2.2;
- .3 A statement of the proposed Guaranteed Maximum Price, including a statement of the estimated Cost of the Work organized by trade categories or systems, including allowances; the Construction Manager's contingency set forth in Section 3.2.4; and the Construction Manager's Fee;
- .4 The anticipated date of Substantial Completion upon which the proposed Guaranteed Maximum Price is based; and
- .5 A date by which the Owner must accept the Guaranteed Maximum Price; and
- .6 A list of the Construction Manager's fixed billing rates used to develop the Guaranteed Maximum Price proposal and that are to be used for determining certain categories of Cost of the Work

§ 3.2.4 In preparing the Construction Manager's Guaranteed Maximum Price proposal, the Construction Manager shall include a contingency for the Construction

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Manager's exclusive use to cover those costs that are included in the Guaranteed Maximum Price but not otherwise allocated to another line item or included in a Change Order ("Construction Contingency"). The Construction Contingency may be used to cover those unanticipated costs which are reasonable and necessary to complete the Work and which the Construction Manager can demonstrate were not included in the Guaranteed Maximum Price but are considered reimbursable as a Cost of the Work under Article 6, subject to the limitations therein, and are not otherwise the basis for a Change Order. Examples of allowable uses of Construction Contingency include, but are not limited to, scope gaps in buyout of the Work, and errors in the Work not caused by the negligence of the Construction Manager or its Subcontractors. Construction Contingency is not to be used to defray costs for which the Construction Manager is entitled to an increase in the Guaranteed Maximum Price by Change Order, which may include but not be limited to design changes, design corrections or concealed conditions. The Construction Manager may use up to \$_____ of Contingency per calendar month without prior approval of the Owner. To the extent the Construction Manager proposes to use more than \$_____ of Contingency in any calendar month, Construction Manager shall notify the Owner in advance and Owner's advance written approval shall be required (and not unreasonably withheld). The Construction Manager shall provide backup for all Contingency usage monthly and on the Schedule of Values included with the Contractor's periodic Application for Payment, and all Contingency expenditures shall be subject to the Owner's approval, which approval shall not be unreasonably withheld. When the Construction Manager allocates costs from the Construction Contingency to another line item in the Schedule of Values, the Construction Manager shall submit supporting documentation to the Architect. Unused Construction Contingency shall be deducted from the Cost of the Work using a deductive Change Order and shall accrue 100% to Owner.

§ 3.2.4.1 Costs incurred as a result of the Construction Manager's or a Subcontractor's error(s) in performing the Work or resulting from negligent, defective, or non-compliant work will not be borne by the Owner or paid to Costructoin Manager from the Construction Contingency and shall be borne exclusively by the Construction Manager.

§ 3.2.5 The Construction Manager shall meet with the Owner and Architect to review the Guaranteed Maximum Price proposal. In the event that the Owner or Architect discover any inconsistencies or inaccuracies in the information presented, or in the Drawings, Specifications or the Owner's program, they shall promptly notify the Construction Manager, who shall make appropriate adjustments to the Guaranteed Maximum Price proposal, its basis, or both.

§ 3.2.6 If the Owner notifies the Construction Manager that the Owner has accepted the Guaranteed Maximum Price proposal in writing before the date specified in the Guaranteed Maximum Price proposal, the Guaranteed Maximum Price proposal



shall be deemed effective without further acceptance from the Construction Manager. Following acceptance of a Guaranteed Maximum Price, the Owner and Construction Manager shall execute the Guaranteed Maximum Price Amendment amending this Agreement, a copy of which the Owner shall provide to the Architect. The Guaranteed Maximum Price Amendment shall set forth the agreed upon Guaranteed Maximum Price with the information and assumptions upon which it is based.

§ 3.2.7 The Construction Manager shall not incur any cost to be reimbursed as part of the Cost of the Work prior to the execution of the Guaranteed Maximum Price Amendment, unless the Owner provides prior written authorization for such costs.

§ 3.2.8 The Owner shall authorize preparation of revisions to the Contract Documents that incorporate the agreed-upon assumptions and clarifications contained in the Guaranteed Maximum Price Amendment. The Owner shall promptly furnish such revised Contract Documents to the Construction Manager. The Construction Manager shall notify the Owner and Architect of any inconsistencies between the agreed-upon assumptions and clarifications contained in the Guaranteed Maximum Price Amendment and the revised Contract Documents.

§ 3.2.9 The Construction Manager shall include in the Guaranteed Maximum Price all sales, consumer, use and similar taxes for the Work provided by the Construction Manager that are legally enacted, whether or not yet effective, at the time the Guaranteed Maximum Price Amendment is executed.

§ 3.2.10 Time is an essential condition of this Contract. Where, in accordance with the Contract Documents, an extended or additional time is allowed for completion of the Work or the performance of any act, the new time established by such extension shall be of the essence of this Contract. Further, wherever a maximum period of time is specified in the Contract Documents for the giving of notice by the Construction Manager of a change in the Work or other claim, or for any grace or cure period, it is agreed that time is of the essence with respect to each period of time so specified.

§ 3.3 Construction Phase § 3.3.1 General § 3.3.1.1 The Construction Phase shall commence upon the later of: (i) Owner's execution of the Guaranteed Maximum Price Amendment (ii) date of confirmation of Owner's funding for the Project, if required by the Contract Documents (iii) date of receipt of a valid building permit; (iv) date of receipt of an acceptable builder's risk insurance policy, unless the Contract Documents provide for the Construction Manager to furnish the builder's risk policy; and (v) the date stated in a written notice to proceed from Owner received by the Construction Manager on or prior to such date.

§ 3.3.1.2 The Construction Manager shall furnish only skilled and properly trained staff for the performance of the Work. The key members of the Construction Manager's staff shall be persons agreed upon with the Owner.

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§ 3.3.1.3 Such key members of the Construction Manager's staff shall not be changed without the prior written consent of the Owner, unless such person becomes unable to perform any required duties due to death, disability, transfer or termination of employment with the Construction Manager. If a key member is no longer capable of performing in the capacity so agreed, the Owner and the Construction Manager shall agree on a mutually acceptable substitute.

§ 3.3.1.4 During the performance of the Work, the Construction Manager shall keep a competent superintendent at the Project site, fully authorized to act on behalf of the Construction Manager. Notice from the Owner or the Architect to such superintendent/project manager in connection with defective Work and instructions for performance of the Work shall be considered notice of such issues to the Construction Manager.

§ 3.3.2 Administration § 3.3.2.1 The Construction Manager shall schedule and conduct meetings to discuss such matters as procedures, progress, coordination, scheduling, and status of the Work. The Construction Manager shall prepare and promptly distribute minutes of the meetings to the Owner and Architect.

§ 3.3.2.2 Upon the execution of the Guaranteed Maximum Price Amendment, the Construction Manager shall prepare and submit to the Owner and Architect a construction schedule that delineates a critical path of construction activities for the Work and a submittal schedule in accordance with Section 3.10 of A201-2017, as modified. This construction schedule will serve as the baseline schedule when evaluating time extensions during the course of the Project.

§ 3.3.2.2.1 The Construction Manager shall create and maintain a detailed construction task schedule which tracks actual construction progress against the schedule established in the preconstruction phase of the Project. The Construction Manager shall communicate the schedule to the Subcontractors, the Owner, and the Architect, and take appropriate steps within the Construction Manager's authority to ensure all parties adhere to the schedule.

§ 3.3.2.3 Monthly Report The Construction Manager shall record the progress of the Project. On a monthly basis, or otherwise as agreed to by the Owner, the Construction Manager shall submit written progress reports to the Owner and Architect, showing percentages of completion and other information required by the Owner.

§ 3.3.2.4 Daily Logs The Construction Manager shall keep, and make available to the Owner and Architect, a daily log containing a record for each day of weather, portions of the Work in progress, number of workers on site, identification of equipment on site, problems that might affect progress of the work, accidents, injuries, and other information required by the Owner.



§ 3.3.2.5 Cost Control The Construction Manager shall develop a system of cost control for the Work, including regular monitoring of actual costs for activities in progress and estimates for uncompleted tasks and proposed changes. The Construction Manager shall identify variances between actual and estimated costs and report the variances to the Owner and Architect, and shall provide this information in its monthly reports to the Owner and Architect, in accordance with Section 3.3.2.3 above.

§ 3.3.2.6 The Construction Manager is responsible for the coordination and oversight of all construction activities.

§ 3.3.2.7 The Construction Manager shall maintain supervisory and/or management personnel on site at all times when construction or construction related activities are taking place.

§ 3.3.2.8 The Construction Manager shall arrange and conduct a preconstruction conference with the construction subcontractors, the Architect and the Owner to cover the general practices, relationships of the parties, construction site rules, regulations, and procedures and to encourage positive working relationships among all parties.

§ 3.3.2.9 The Construction Manager shall maintain quality control of the construction progress by way of its full-time supervision on the site to ensure work is progressing in accordance with construction documents.

§ 3.3.2.10 The Construction Manager shall maintain job site records including all contracts for construction, construction documents, submittals, materials samples, as-built drawings, or other documentation relevant to the construction of the Project.

§ 3.3.2.11 The Construction Manager shall provide an appropriate onsite job office including space to conduct job meetings. The office will be of temporary construction, trailers or portable enclosures to maintain adequate conditions for its field personnel. The office will be equipped with, as a minimum, adequate heating and cooling, lighting and office equipment, telephone, copier and supplies.

§ 3.3.2.12 The Construction Manager shall maintain a construction cost accounting system which provides up to date costs for both actual expenses and anticipated costs. The accounting system must also provide comparisons of these costs to the design and construction control budget.

§ 3.3.2.13 The Construction Manager shall record and prepare proposals for change orders. The proposals for change orders shall be submitted to the Owner and the Architect for review, approval or rejection, and change order preparation by the Architect. A record listing all change orders proposed, rejected and approved shall be maintained by the Construction Manager.



§ 3.3.2.14 The Construction Manager shall be the sole source of all questions from subcontractors and suppliers relating to clarifications of the construction documents and changes to the construction contracts. The Construction Manager shall review all such requests for clarification and/or information from the subcontractors and suppliers, as appropriate, and forward these requests to the Architect for clarification with copy to the Owner.

§ 3.3.2.15 The Construction Manager, in cooperation with the Architect, shall prepare a list of required submittals for the Project at the earliest time possible after commencement of the construction phase. The Construction Manager shall prepare a schedule for each required submittal by each construction subcontractor to expedite and coordinate the receipt, review and ordering of materials within the necessary sequence of the construction.

§ 3.3.2.16 The Construction Manager shall endeavor to minimize or prevent construction activities from negatively affecting the ongoing working environment of the Owner.

§ 3.3.2.17 The Construction Manager shall create and maintain a construction site safety program to ensure all personnel in and around the construction areas are reasonably protected at a minimum to the requirements of the law. The Construction Manager shall monitor all activities on the site to promote safe and secure conditions.

§ 3.3.2.18 The Construction Manager shall develop a project close-out program including the assembling for transmittal to the Owner all operations and maintenance manuals, warranties, as-built drawings, approved materials submittals and any other records for delivery to the Owner.

§ 3.3.2.19 The Construction Manager shall arrange for Certificate of Occupancy as required by local jurisdictions.

§ 3.3.2.20 The Construction Manager shall attend or otherwise assist with public meetings, meetings with the Owner's employees or governmental conferences deemed necessary in the execution of the Project.

§ 3.3.2.21 The Construction Manager shall coordinate the start up, testing and training of Owner personnel as required under the construction documents. The Construction Manager shall also cooperate with the Commissioning Agent engaged directly by the Owner and shall manage and coordinate any necessary corrective work discovered during the commissioning process. The Construction Manager shall also arrange for and coordinate any warrantee work until the date one year after the date of substantial completion.

§ 3.3.2.22 The Construction Manager shall clean the construction area in the building and on the site and maintain these areas in an orderly and well-kept



condition. All trash resulting from the construction activities, shall be properly and lawfully disposed of by the Construction Manager throughout the duration of the Project.

§ 3.3.2.23 The Construction Manager shall provide final cleaning of all areas prior to their being occupied by the Owner either temporarily or permanently.

§ 3.3.2.24 The Construction Manager shall be responsible to the Owner for the compliance by the Construction Manager and by each Subcontractor with the requirements of all of the applicable provisions of the Contract Documents and of all Laws.

§ 3.3.2.25 Prior to commencing Work, the Construction Manager shall provide the Owner with a list of the names and addresses of all Subcontractors, employed or used in completion of the Work, and shall update such list in a timely manner as may be appropriate to keep the Owner and the Architect informed.

ARTICLE 4 - OWNER'S RESPONSIBILITIES

§ 4.1 Information and Services Required of the Owner

§ 4.1.1 The Owner shall provide information within the time period, if any, specified in the Contract Documents or else with reasonable promptness, regarding requirements for and limitations on the Project, including a written program which shall set forth the Owner's objectives, constraints, and criteria, including schedule, space requirements and relationships, flexibility and expandability, special equipment, systems, sustainability and site requirements.

§ 4.1.2 Prior to the execution of the Guaranteed Maximum Price Amendment, the Construction Manager may request in writing that the Owner provide reasonable evidence that the Owner has made financial arrangements to fulfill the Owner's obligations under the Contract. After execution of the Guaranteed Maximum Price Amendment, the Construction Manager may request such information as set forth in A201-2017, as modified, Section 2.2.

§ 4.1.3 The Owner shall establish and periodically update the Owner's budget for the Project, including (1) the budget for the Cost of the Work as defined in Article 7, (2) the Owner's other costs, and (3) reasonable contingencies related to all of these costs. If the Owner significantly increases or decreases the Owner's budget for the Cost of the Work, the Owner shall notify the Construction Manager and Architect. The Owner and the Architect, in consultation with the Construction Manager, shall thereafter agree to a corresponding change in the Project's scope and quality.

§ 4.1.4 Structural and Environmental Tests, Surveys and Reports. During the Preconstruction Phase, the Owner shall furnish the following information or services



with reasonable promptness. The Owner shall also furnish any other information or services under the Owner's control and relevant to the Construction Manager's performance of the Work with reasonable promptness after receiving the Construction Manager's written request for such information or services. The Construction Manager shall be entitled to rely on the accuracy of information and services furnished by the Owner but shall exercise proper precautions relating to the safe performance of the Work.

§ 4.1.4.1 The Owner shall furnish tests, inspections, and reports, required by law and as otherwise agreed to by the parties, such as structural, mechanical, and chemical tests, tests for air and water pollution, and tests for hazardous materials.

§ 4.1.4.2 The Owner shall furnish surveys describing physical characteristics, legal limitations and utility locations for the site of the Project, and a written legal description of the site. The surveys and legal information shall include, as applicable, grades and lines of streets, alleys, pavements and adjoining property and structures; designated wetlands; adjacent drainage; rights-of-way, restrictions, easements, encroachments, zoning, deed restrictions, boundaries and contours of the site; locations, dimensions and other necessary data with respect to existing buildings, other improvements and trees; and information concerning available utility services and lines, both public and private, above and below grade, including inverts and depths. All the information on the survey shall be referenced to a Project benchmark.

§ 4.1.4.3 The Owner, when such services are reasonably requested, shall furnish services of geotechnical engineers, which may include test borings, test pits, determinations of soil bearing values, percolation tests, evaluations of hazardous materials, seismic evaluation, ground corrosion tests and resistivity tests, including necessary operations for anticipating subsoil conditions, with written reports and appropriate recommendations.

§ 4.1.5 During the Construction Phase, the Owner shall furnish information or services required of the Owner by the Contract Documents within the time period, if any, specified in the Contract Documents or else with reasonable promptness. The Owner shall also furnish any other information or services under the Owner's control and relevant to the Construction Manager's performance of the Work with reasonable promptness after receiving the Construction Manager's written request for such information or services.

§ 4.1.6 If the Owner identified a Sustainable Objective in Article 1, and the parties have agreed to include the AIA E234-2019 as part of the Agreement, the Owner shall fulfill its responsibilities as required in the agreed AIA Document E234™–2019.

§ 4.2 Owner's Designated Representative

The Owner shall identify a representative authorized to act on behalf of the Owner with respect to the Project. The Owner's representative shall render decisions



promptly and furnish information expeditiously, so as to avoid unreasonable delay in the services or Work of the Construction Manager. Except as otherwise provided in Section 4.2.1 of A201–2017, as modified, the Architect does not have such authority. The term “Owner” means the Owner or the Owner’s authorized representative.

§ 4.2.1 Legal Requirements. The Owner shall furnish all legal and accounting services, including auditing services, that may be reasonably necessary at any time for the Project to meet the Owner’s needs and interests.

§ 4.3 Architect

The Owner shall retain an Architect to provide services, duties and responsibilities of a the Architect of record, that are necessary for the Preconstruction and Construction Phase services under this Agreement. The Owner may provide the Construction Manager with a copy of the scope of services in the executed agreement between the Owner and the Architect, and any further modifications to the Architect’s scope of services in the agreement.

ARTICLE 5 - COMPENSATION AND PAYMENTS FOR PRECONSTRUCTION PHASE SERVICES

§ 5.1.1 Compensation for Preconstruction Phase services:

Lump sum of **One Hundred Eighty-Five Thousand Dollars (\$185,000)**, payable in equal monthly installments over the Preconstruction Phase. No reimbursable costs except as expressly approved in writing by the Owner.

§ 5.1.2 Agreed fixed hourly billing rates for Preconstruction Phase services:

Individual or Position	Rate
Principal-in-Charge / Senior VP	\$265.00 / hr
Preconstruction Manager	\$215.00 / hr
Senior Estimator	\$185.00 / hr
Project Estimator	\$145.00 / hr
MEP Coordinator	\$165.00 / hr
Scheduler (P6)	\$155.00 / hr
Project Engineer	\$125.00 / hr



Individual or Position	Rate
Administrative Support	\$ 78.00 / hr

§ 5.1.3 If Preconstruction Phase services are not completed within **six (6)** months of the date of this Agreement, the CM's compensation shall be equitably adjusted.

§ 5.2.2 Amounts unpaid **forty-five (45)** days after invoice shall bear interest at:

Eight percent (8.0%) per annum.

ARTICLE 6 - COMPENSATION FOR CONSTRUCTION PHASE SERVICES

§ 6.1 Contract Sum

§ 6.1.1 The Contract Sum is the Cost of the Work plus the Construction Manager's Fee.

Component	Amount
LUMP SUM FIXED GENERAL CONDITIONS	\$3,543,380
TOTAL FIXED FEE (lump sum based on % of the Project budget estimate at GMP Amendment)	\$9,189,308
GENERAL CONTRACTOR'S PAYMENT & PERFORMANCE BOND	\$227,724
GENERAL LIABILITY INSURANCE	\$18,218

§ 6.1.2 The Construction Manager's Fee:

Lump sum, fixed fee of \$9,189,308 (representing approximately 14.81% of the Direct Cost of the Work).



§ 6.1.3 Method of adjustment of the Construction Manager's Fee for changes in the Work:

Equitable adjustment to be mutually agreed by the parties.

§ 6.1.4 Limitations on a Subcontractor's overhead and profit for increases in the cost of its portion of the Work:

Subcontractor combined overhead and profit on additive Change Order work shall not exceed fifteen percent (15%) of the direct cost of the change. Lower-tier subcontractor combined overhead and profit shall not exceed ten percent (10%).

§ 6.1.5 Rental rates for Construction Manager-owned equipment shall not exceed **eighty-five percent (85%)** of the standard rental rate paid at the place of the Project (as published in the Equipment Watch *Blue Book* Northeast Region).

§ 6.1.6 Liquidated damages:

Liquidated damages for failure to complete the construction as defined in the General Conditions will be assessed to the Construction Manager for each calendar day after the date for Substantial Completion identified in Paragraph 1.1.4 until Substantial Completion is actually achieved.

If the Construction Manager does not achieve Substantial Completion of the work in accordance with the Contract Times set forth above, the Construction Manager shall pay the Owner, as liquidated damages and not as a penalty, **five thousand dollars (\$5,000)** per calendar day by which the actual date of Substantial Completion exceeds the adjusted Contract Time.

§ 6.1.7 Other (incentives / cost savings):

At the completion of the Project, if the Total Cost of the Work including the Construction Manager's Fee is less than the Guaranteed Maximum Price as adjusted by Change Orders, the remaining funds shall be deemed to be savings. **All of the savings shall be returned to the Owner.**

§ 6.2 Guaranteed Maximum Price



Guaranteed Maximum Price: \$82,842,229.00
(See Exhibit A for line-item allocation.)

**ARTICLE 7 COST OF THE WORK FOR
CONSTRUCTION PHASE**

This document outlines the reimbursable and non-reimbursable costs for the Construction Manager (CM) under the terms of the Agreement.

Article 7: Cost of the Work to be Reimbursed

7.1 General Provisions

- **7.1.1 Definition:** "Cost of the Work" means costs necessarily incurred by the CM in the proper performance of the Work as set forth in Article 7 or the GMP Amendment.
- **7.1.2 Prior Approval:** Any cost subject to Owner approval must be obtained in **writing** before the cost is incurred.
- **7.1.3 Standard Rates:** Costs must not exceed standard local rates unless approved in advance by the Owner.

7.2 Labor Costs

- **7.2.1 Site Labor:** Wages/salaries of workers directly employed by the CM at the site (or approved off-site workshops) per prevailing wage schedules.
- **7.2.2 Site Supervision:** Wages of supervisory/administrative personnel stationed at the site, subject to Owner approval.
- **7.2.2.1 Authorized Off-Site Personnel:**

Position	Reimbursable Limit	Rate (Fully Burdened)
Project Executive	Up to 15% of time	\$232.00 / hr
Corporate Safety Director	Up to 8% of time	\$198.00 / hr

- **7.2.3 Expediting:** Personnel engaged in factories or traveling to expedite materials, provided there is prior written approval.

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- **7.2.4 Benefits & Taxes:** Statutory and customary benefits (social security, health, pension, etc.) based on wages included in sections 7.2.1–7.2.3.
- **7.2.6 Authorization:** No labor costs for the CM's own personnel are reimbursed unless authorized in **writing in advance**.

7.3 Subcontract Costs

- Payments made to Subcontractors in accordance with the requirements of the subcontracts and this Agreement.

7.4 Materials and Equipment (Incorporated)

- **7.4.1 Direct Costs:** Costs of materials, equipment, transportation, and site storage.
- **7.4.2 Waste & Spoilage:** Includes reasonable waste. Unused excess materials paid for by the Owner belong to the Owner or must be sold with proceeds credited to the Owner.

7.5 Temporary Facilities and Related Items

- **7.5.1 Consumables:** Costs for items fully consumed at the site. Non-consumed items are valued at initial cost less residual value (per *Equipment Watch Fair Market Value*).
- **7.5.2 Rentals:** Reasonable rental charges for machinery and tools.
 - *Limit:* Total rental cannot exceed the purchase price of a comparable item.
 - *Related Parties:* Rates for CM-owned equipment require prior Owner approval.
- **7.5.4 Site Office:** Costs for the CM's site office, including equipment and supplies.

7.6 Miscellaneous Costs

- **7.6.1 Insurance & Bonds:** Fixed rates as agreed in the GMP Amendment.
- **7.6.3 Permits & Fees:** Building permits, licenses, and required inspections.
- **7.6.6 Communications:** Electronic equipment and software are **not** separately reimbursable; they are included in labor rates.
- **7.6.9 Legal/Mediation:** Costs reasonably incurred in the performance of the Work with prior approval. **Excludes** disputes between Owner/CM or CM/Subcontractors.
- **7.6.11 Travel:** Out-of-town travel (excluding site/office commutes) requires prior written approval.



Article 7.9: Costs Not To Be Reimbursed

The following items are **excluded** from the Cost of the Work:

1. **Off-site Personnel:** Salaries of personnel at the CM's principal office (except as noted in 7.2).
2. **Discretionary Payments:** Bonuses, profit sharing, or incentive compensation without prior Owner approval.
3. **Office Overhead:** Expenses of the CM's principal office (computer costs, general business expenses).
4. **Capital Expenses:** CM's capital charges or interest on capital employed.
5. **Negligence:** Costs due to the negligence of the CM, Subcontractors, or suppliers.
6. **Defective Work:** Costs to repair or correct defective or nonconforming work.
7. **Financial Penalties:** Fines, sanctions, or government impositions due to CM negligence.
8. **Excess Costs:** Any costs exceeding the **Guaranteed Maximum Price (GMP)**.
9. **Precon Services:** Costs incurred during the Preconstruction Phase.
10. **Legal & Travel:** Expenses related to the negotiation or interpretation of this Contract.
11. **Overtime:** Hourly charges >40 hours/week for salaried employees, or overtime caused by CM negligence.
12. **Personnel Admin:** Recruiting, severance, and general employee training (unless project-specific and approved).

Section 7.9.2: Work described in sections 7.9.1.1 through 7.9.1.10 that is not authorized in advance will only be reimbursed if it remains within the approved GMP.

ARTICLE 8 DISCOUNTS, REBATES, AND REFUNDS

§ 8.1 Cash discounts obtained on payments made by the Construction Manager shall accrue to the Owner if (1) before making the payment, the Construction Manager included the amount to be paid, less such discount, in an Application for Payment and received payment from the Owner, or (2) the Owner has deposited funds with the Construction Manager with which to make payments; otherwise, cash discounts shall accrue to the Construction Manager. Trade discounts, rebates, refunds, and amounts received from sales of surplus materials and equipment shall accrue to the Owner, and the Construction Manager shall make provisions so that they can be obtained.

§ 8.2 Amounts that accrue to the Owner in accordance with the provisions of Section 8.1 shall be credited to the Owner as a deduction from the Cost of the Work.



ARTICLE 9 SUBCONTRACTS AND OTHER AGREEMENTS

§ 9.1 Those portions of the Work that the Construction Manager does not customarily perform with the Construction Manager's own personnel shall be performed under subcontracts or other appropriate agreements with the Construction Manager. The Owner may designate specific persons from whom, or entities from which, the Construction Manager shall obtain bids. The Construction Manager shall obtain bids from Subcontractors, and from suppliers of materials or equipment fabricated especially for the Work, who are qualified to perform that portion of the Work in accordance with the requirements of the Contract Documents. The Construction Manager shall deliver such bids to the Architect and Owner with an indication as to which bids the Construction Manager recommends accepting. The Owner shall then determine, with the advice of the Construction Manager and the Architect, which bids will be accepted. . The Owner has the right to review the Construction Manager's list of proposed subcontractors and suppliers in consultation with the Architect and, subject to Section 9.1.1, to object to any subcontractor or supplier. Any advice of the Architect, or approval or objection by the Owner, shall not relieve the Construction Manager of its responsibility to perform the Work in accordance with the Contract Documents.

§ 9.1.1 When a specific subcontractor or supplier (1) is recommended to the Owner by the Construction Manager; (2) is qualified to perform that portion of the Work; and (3) has submitted a bid that conforms to the requirements of the Contract Documents without unreasonable reservations or exceptions, but the Owner requires that another bid be accepted, then the Construction Manager may require that a Change Order be issued to adjust the Guaranteed Maximum Price by the difference between the bid of the person or entity recommended to the Owner by the Construction Manager and the amount of the subcontract or other agreement actually signed with the person or entity designated by the Owner.

§ 9.2 Subcontracts or other agreements shall conform to the applicable payment provisions of this Agreement, and shall not be awarded on the basis of cost plus a fee without the Owner's prior written approval. If a subcontract is awarded on the basis of cost plus a fee, the Construction Manager shall provide in the subcontract for the Owner to receive the same audit rights with regard to the Subcontractor as the Owner receives with regard to the Construction Manager in Article 10.

ARTICLE 10 ACCOUNTING RECORDS

The Construction Manager shall keep full and detailed records and accounts related to the Preconstruction Phase compensation and the Cost of the Work, and exercise such controls, as may be necessary for proper financial management under this Contract and to substantiate all costs incurred. The accounting and control systems shall be satisfactory to the Owner, provided that if the Owner desires the Construction Manager to use accounting methods or controls or supporting documentation that are different from the Construction Manager's normal business practices, Owner's requirements shall be provided prior to the first Application for Payment. The Owner and the Owner's auditors shall, during regular business hours and upon reasonable notice, be afforded access to, and shall be permitted to audit and



copy, the Construction Manager's records and accounts, including complete documentation supporting accounting entries, books, job cost reports, correspondence, instructions, drawings, receipts, subcontracts, Subcontractor's proposals, Subcontractor's invoices, purchase orders, vouchers, memoranda, and other data relating to this Contract. The Construction Manager shall preserve these records for a period of six years after final payment, or for such longer period as may be required by law. The Owner shall require the accountants and auditors to keep the Construction Manager's records, books and other documents confidential.

§ 10.1 All records shall be maintained in accordance with generally accepted accounting procedures, consistently applied. Subcontractors retained by the Construction Manager shall have the same obligations to retain records and permit audits as required of the Construction Manager.

§ 10.2 If requested by the Owner, the Construction Manager shall promptly, within 30 days, deliver to the Owner copies of all correspondence, estimates, budgets, breakdowns, accounting data, bid proposals, cost control information and any other documents relating to the Project, in a form acceptable to the Owner.

§ 10.3 Without limitation of the foregoing, the Owner shall have the right, at any time and from time to time, upon notice to the Construction Manager, to audit the Construction Manager's books and records in connection with the Work at the Construction Manager's offices. The Construction Manager shall facilitate any such audit by making necessary facilities available to the Owner and its representatives.

§ 10.4 If any inspection by the Owner of the Construction Manager's records, books, correspondence, instructions, drawings, receipts, vouchers, memoranda and any other data relating to the Contract Documents reveals an overcharge, including, without limitation, any untimely request for payment as described in , the Construction Manager shall pay the Owner upon demand, when the overage is in excess of 0.25% of the Work, all the overcharged amount along with the complete cost of the administrative expenses incurred in determining the overage. The requirements of this Paragraph 10.4 shall not apply to any portion of an overcharge which is the subject of a good faith dispute between the Owner and the Construction Manager.

ARTICLE 11 PAYMENTS FOR CONSTRUCTION PHASE SERVICES

§ 11.1.2 Period covered by each Application for Payment:

One calendar month ending on the **25th** day of each month.

§ 11.1.3 *Standard payment timing language applies - billings due 30th, Application by 1st, Architect/Owner review by 5th, Owner payment within forty-five (45) days of approved Application.*



§ 11.1.8.1 Retainage withheld from each Application for Payment:

Five percent (5%)

§ 11.1.8.1.1 Items not subject to retainage:

General Conditions, bond premiums, and builder's risk insurance premiums.

§ 11.1.8.3 Retainage release upon Substantial Completion:

Upon Substantial Completion, retainage shall be reduced to one-half of one percent (0.5%) of the Contract Sum, to be held until Final Completion and acceptance by the Owner.

ARTICLE 12 - DISPUTE RESOLUTION

§ 12.1 Initial decision maker:

Daniel S. Whitfield, P.E., Principal-in-Charge
Eastbridge Engineering Group, Inc.
480 Pleasant Street, Suite 320
New Bedford, MA 02740

§ 12.2 Binding Dispute Resolution:

- Arbitration pursuant to Article 15 of AIA Document A201–2017, as modified, otherwise litigation as set forth below.
- **[X]** Litigation in the Massachusetts Superior Court for Bristol County at Owner's sole election, otherwise mandatory binding arbitration. The parties waive all respective rights to a jury trial.
- Other.

ARTICLE 13 - TERMINATION OR SUSPENSION



§ 13.2.3 Termination Fee for Owner's Convenience:

A termination fee equal to the lesser of (i) **three percent (3%)** of the unperformed portion of the Cost of the Work as of the effective date of termination, or (ii) **\$750,000**, shall be payable to the Construction Manager. The termination fee shall be in addition to all amounts properly due under Sections 13.2.2.1 and 13.2.2.2.

ARTICLE 14 **MISCELLANEOUS PROVISIONS**

§ 14.1 **Terms in this Agreement**

shall have the same meaning as those in A201–2017, as modified. Where reference is made in this Agreement to a provision of AIA Document A201–2017, as modified, or another Contract Document, the reference refers to that provision as amended or supplemented by other provisions of the Contract Documents.

§ 14.2 **Successors and Assigns**

§ 14.2.1 The Owner and Construction Manager, respectively, bind themselves, their partners, successors, assigns and legal representatives to covenants, agreements, and obligations contained in the Contract Documents. Except as provided in Section 14.2.2 of this Agreement, and in Section 13.2.2 of A201–2017, as modified, neither party to the	Contract shall assign the Contract as a whole without written consent of the other. If either party attempts to make an assignment without such consent, the assignment shall be void and that party shall nevertheless remain legally responsible for all obligations under the Contract.
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§ 14.2.2 The Owner may, without consent of the Construction Manager, assign the Contract to a lender providing construction financing for the Project, if the lender assumes the Owner’s rights and obligations under the Contract Documents.	The Construction Manager shall execute all consents reasonably required to facilitate the assignment.
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§ 14.3 Insurance and Bonds

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§ 14.3.1 The Construction Manager shall maintain insurance for the duration of the services performed under this Agreement as set forth in Exhibit B to this A133 Agreement, and otherwise in compliance with the terms of this Article 14 and Article 11 of the A201 General Conditions, as modified.

§ 14.3.1.1 Not used

§ 14.3.1.2 Not used

ARTICLE 15 - SCOPE OF THE AGREEMENT

§ 15.2 The following documents comprise the Agreement:

.1 AIA Document A133™–2019, as modified, Standard Form of Agreement Between Owner and Construction Manager as Constructor where the basis of payment is the Cost of the Work Plus a Fee with a Guaranteed Maximum Price

.2 AIA Document A133™–2019, Exhibit A, Guaranteed Maximum Price Amendment, dated October 24, 2025

.3 ARPA Addendum (Federal requirements for ARPA-funded contracts)

.4 AIA Document A133™–2019, Exhibit B, Insurance and Bonds

.5 AIA Document A201™–2017, as modified, General Conditions of the Contract for Construction

.6 AIA Document E203™–2013, Building Information Modeling and Digital Data Exhibit, dated **October 24, 2025**

Other Exhibits:

- [X] AIA Document E234™–2019, Sustainable Projects Exhibit, dated **October 24, 2025**
- [X] **Other documents:** Exhibit C - Project Schedule (P6 Baseline, dated October 6, 2025)
Exhibit D - Schedule of Values (dated October 6, 2025)
Exhibit E - Long Lead Procurement Plan (dated October 10, 2025)
Exhibit F - Davis-Bacon Prevailing Wage Determination MA20250012
Exhibit G - MWBE Participation Plan (15% goal)

This Agreement is entered into as of the day and year first written above.



OWNER *(Signature)*	**CONSTRUCTION MANAGER** *(Signature)*
Margaret R. DiPietro, P.E.	Thomas R. Calderon
Director of Capital Projects	Senior Vice President of Operations
City of Fall River, Massachusetts	Fictional Civil Constructors, LLC
(Printed name and title)	(Printed name and title)

EXHIBIT A - GUARANTEED MAXIMUM PRICE
AMENDMENT

Project: Cowan Street Sewer Improvements and Marine Drive Utility Relocation Project
Date of Amendment: October 24, 2025

Schedule of Values

Description	Amount
Existing Conditions	\$1,966,009
Building Slab Demolition	
800 & 840 Cowan St - Building Tract 8	\$484,434
750 & 760 Cowan St - Building Tract 7A	\$946,448
740 Cowan St - Building Tract 7B	\$472,961
700 Cowan St - Building Tract 2	\$818,404
1425 Cowan St - Building Tract 14	\$81,895
1429 Cowan Ct - Building Tract 3	\$161,584
1433 Cowan Ct - Building Tract 13	\$159,960
1432 Cowan Ct - Building Tract 5	\$196,503
1436 Cowan Ct - Building Tract 12	\$177,389
Concrete	\$2,012,445
Earthwork	\$3,169,463

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Description	Amount
Exterior Improvements	\$734,745
Utilities	
30" SS Force Main	\$2,334,594
66" SS Force Main	\$9,680,727
Long lead PO for Mill Order Steel	\$1,500,000
Box Culvert	\$12,360,753
60" Storm	\$2,294,724
Marine Drive Utilities - 12" Water	\$244,823
Marine Drive Utilities - 12" Gravity Sewer	\$1,167,008
Marine Drive Utilities - 30" Overflow	\$913,955
Marine Drive Utilities - Sewer Manhole	\$122,672
General Conditions	\$3,543,380
Accepted Alternates	
River North Blvd Demolition	\$229,553
OCIP Credit	\$(20,000)
54" Gravity Trunk Sewer	\$13,648,961
Relocated 30" Overflow Sewer Line	\$1,526,868
Abandon and Grout Fill Existing 30" Overflow Sewer Line	\$331,797
Traffic control on River N & Cowan	\$325,000
BIM As-Builts and Construction Update Presentations	\$150,000
Riprap assumptions - items #10 and #12	\$55,000
Video recording of all installed gravity sewer lines	\$10,000
Investigative work of 66" SSFM (Spec. Sec. 026125)	\$225,000
DIRECT COST TOTAL	\$62,027,055
Contractor's Fee	
Fee (Overhead & Profit)	\$9,189,308
Closeout (5%)	<i>(included)</i>
Indirect Costs	



Description	Amount
Contractor Contingency on Direct Work	\$3,063,103
Commercial General Liability Insurance	\$18,218
Contractor Payment & Performance Bonds	\$227,724
Builder's Risk Insurance	\$68,317
Building Permits / Plan Review Fee / Use Tax	\$50,000
Allowances	
Allowance for Permit Review Comments and Changes Made by AHJs	\$3,135,400
Unforeseen Conditions	\$1,000,000
Unsuitable Soils	\$1,000,000
CONTRACTOR TOTAL	\$79,779,126
Owner Contingency	
Owner Contingency on Direct Work	\$3,063,103
TOTAL CONTRACT VALUE	\$82,842,229

Construction Manager's Construction Contingency Usage

Per § 3.2.4 of the Agreement, the CM may use up to \$50,000 of Contingency per calendar month without prior approval of the Owner; usage exceeding \$150,000 in any calendar month requires Owner's advance written approval.

Schedule Milestones (per Exhibit C - P6 Baseline)

Milestone	Date
Construction NTP	11/24/2025
Cowan Power Poles Fully Disconnected	12/01/2025
Long Lead Release - 66" Pipe Mill Steel & 66" Plug Valve	12/26/2025
Mobilization Period (start)	02/02/2026
Pre-load Fill Monitoring Begin	03/02/2026
Box Culvert Installation Begin	06/01/2026



Milestone	Date
Projected Substantial Completion	06/25/2027
Substantial Completion (Contract Date)	06/30/2027
Final Completion (Contract Date)	07/30/2027

EXHIBIT B - INSURANCE AND BONDS

Coverage	Limit	Premium (Annual)
Commercial General Liability (CGL)	2,000,000 <i>each occurrence</i> / 4,000,000 aggregate	\$18,218
Excess / Umbrella Liability	\$25,000,000 each occurrence / aggregate	<i>(see CGL bundle)</i>
Automobile Liability	\$2,000,000 combined single limit	<i>(included)</i>
Workers' Compensation	Statutory (MA)	<i>(included)</i>
Employers' Liability	1,000,000 / 1,000,000 / \$1,000,000	<i>(included)</i>
Builder's Risk (All-Risk, Project-Specific)	\$82,842,229 (full Contract Value)	\$68,317
Payment & Performance Bonds (100% of Contract Sum)	\$82,842,229 each	\$227,724
Pollution Legal Liability	5,000,000 <i>each claim</i> / 10,000,000 aggregate	<i>(separate rider)</i>

Carriers:

- CGL / Auto / Umbrella: Liberty Mutual Insurance Company (A.M. Best A, XV)
- Workers' Compensation: The Hartford (A.M. Best A+, XV)
- Builder's Risk: Zurich American Insurance Company (A.M. Best A+, XV)
- Surety (Bonds): Travelers Casualty and Surety Company of America (A.M. Best A++, XV)

The City of Fall River, Massachusetts shall be named as an Additional Insured on a primary and non-contributory basis on the CGL, Auto, Umbrella, and Pollution Legal Liability policies, in accordance with § 14.3.1.7 of the Agreement.

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